

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 23, 2026
8:30 AM/1:30 PM

23. ADRIANA YANEZ V. JULIAN SILVA

26FL0113

Petitioner filed a Request for Order (RFO) on February 6, 2026, seeking child custody and child support orders. Petitioner concurrently filed an Income and Expense Declaration. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on February 23, 2026 and a review hearing on April 23, 2026. Proof of Service shows Respondent was served with some of the required documents on February 21, 2026. Respondent was not served with the referral to CCRC.

Only Petitioner appeared at CCRC on February 23, 2026. As such, a single parent report was filed with the court on April 20, 2026. It was mailed to the parties the same day.

Respondent has not filed a Responsive Declaration or an Income and Expense Declaration.

The court finds good cause to rerefer the parties to CCRC for an appointment on Thursday, May 21st at 9:00 AM and a further review hearing on Thursday, July 16th at 1:30 PM in Department 5. The court reserves jurisdiction to retroactively modify child support to the date of the filing of the RFO. Respondent shall be able to file a Responsive Declaration in accordance with the new review hearing date. Respondent is ordered to file and serve a complete Income and Expense Declaration no later than 10 days prior to the review hearing date.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #23: THE COURT FINDS GOOD CAUSE TO REREFER THE PARTIES TO CCRC FOR AN APPOINTMENT ON THURSDAY, MAY 21ST AT 9:00 AM AND A FURTHER REVIEW HEARING ON THURSDAY, JULY 16TH AT 1:30 PM IN DEPARTMENT 5. THE COURT RESERVES JURISDICTION TO RETROACTIVELY MODIFY CHILD SUPPORT TO THE DATE OF THE FILING OF THE RFO. RESPONDENT SHALL BE ABLE TO FILE A RESPONSIVE DECLARATION IN ACCORDANCE WITH THE NEW REVIEW HEARING DATE. RESPONDENT IS ORDERED TO FILE AND SERVE A COMPLETE INCOME AND EXPENSE DECLARATION NO LATER THAN 10 DAYS PRIOR TO THE REVIEW HEARING DATE. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

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NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.